

22STCV38615 22STCV38615

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Case Number: 22STCV38615 Hearing Date: September 3, 2026 Dept: 408

Plaintiff Colette Barris' Motion for Leave to File First Amended Complaint is GRANTED.

I.

BACKGROUND

On December 12, 2022, Plaintiff Colette Barris ("Plaintiff") filed a complaint against Defendant Kenya Barris ("Defendant") alleging a cause of action for breach of contract.

On March 15, 2023, pursuant to Plaintiff's request, default was entered against Defendant.

On May 19, 2026, the court entered the parties' stipulation to vacate Defendant's default.

On May 31, 2023, Defendant filed an answer to Plaintiff's complaint.

On July 6, 2026, Plaintiff filed this Motion for Leave to Amend. As of August 31, 2026, no opposition or other responsive pleading has been filed.

II.

LEGAL

STANDARD

Under

Code of Civil Procedure section 473(a)(1), "[t]he court may, in furtherance of

justice, and on any terms as may be proper, allow a party to amend any pleading.” (Code Civ. Proc., § 473, subd. (a)(1).) Amendment may be allowed at any time before or after commencement of trial. (Code Civ. Proc., § 576.) “[T]he court’s discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 [internal citations omitted].) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend[.]” (Morgan v. Sup. Ct. (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A

motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. (Cal. Rules of Court, Rule 3.1324, subd. (a).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number. (Cal. Rules of Court, Rule 3.1324, subd. (a).) Finally, a separate supporting declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason the request for amendment was not made earlier must also accompany the motion. (Cal. Rules of Court, Rule 3.1324, subd. (b).)

III.

DISCUSSION

Plaintiff

seeks leave to file a first amended complaint to include additional causes of action for defamation, tortious interference, intentional infliction of emotional distress, civil conspiracy, public disclosure of private facts, and negligence arising from Defendant’s alleged post-settlement breaches of a February 22, 2021, Confidential Settlement and Non-Disparagement Agreement and related tortious conduct. (Motion, at p. 3.) Plaintiff argues that there is no prejudice arising from the amendment and that amendment will promote judicial economy by resolving all related claims in a single action. (Id., at pp.

3-4.)

The

court finds that Plaintiff complies with the requirements of Rule 3.1324 by providing a copy of the proposed first amended complaint, identifying the changes to be made, and stating why the amendment is necessary. (Id., at p. 4, Exh. A.) The court also notes that Defendant does not oppose the proposed amendment. (Cal. Rules of Court, rule 8.54, subd. (c) ["A failure to oppose a motion may be deemed a consent to the granting of the motion."]; Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.)

Accordingly,
the motion is granted.

IV.

CONCLUSION

Plaintiff Colette Barris' Motion for Leave to File
First Amended Complaint is GRANTED.